

The American Bill of Digital Rights

Draft Legislative Framework for Congressional Consideration

Preamble

The Constitution of the United States was established to secure the blessings of liberty against concentrations of power. As society enters an era in which personal information, behavioral data, biometric identifiers, and predictive algorithms increasingly influence civic participation, economic opportunity, and individual autonomy, Congress recognizes that constitutional liberties must remain meaningful within digital environments.

This Bill of Digital Rights does not create new classes of rights. Rather, it affirms that existing principles of liberty, due process, privacy, free expression, equal protection, and individual sovereignty apply equally within the digital domain.

The purpose of this Act is to preserve human autonomy, protect constitutional liberties, and ensure that technological advancement remains subordinate to democratic governance and individual rights.

Article I

Right to Digital Personhood

Section 1.

Every individual possesses a protected liberty interest in digital information that identifies, describes, models, predicts, or materially influences decisions concerning that individual.

Section 2.

Digital representations, behavioral profiles, biometric identifiers, and predictive models relating to an individual shall be recognized as extensions of that individual's legal interests and shall be afforded protections consistent with constitutional guarantees.

Section 3.

No person shall be deprived of opportunities, benefits, services, employment, education, housing, credit, or civic participation solely on the basis of undisclosed digital profiling.

Article II

Right to Informational Transparency

Section 1.

Every individual shall have the right to know what information is collected, stored, inferred, purchased, shared, or maintained concerning them.

Section 2.

Any organization maintaining personal information shall provide, upon request, a clear and understandable disclosure of such information.

Section 3.

Individuals shall have the right to obtain a complete record of personal information maintained about them in a portable and accessible format.

Article III

Right to Data Accuracy

Section 1.

Individuals shall have the right to correct materially inaccurate information used in consequential decisions.

Section 2.

Organizations shall establish reasonable procedures for review, correction, and appeal of disputed information.

Section 3.

No materially consequential decision shall rely upon information known to be false, misleading, obsolete, or materially incomplete.

Article IV

Right to Predictive Sovereignty

Section 1.

Individuals possess a protected interest in predictive models derived from their behavior, communications, movements, transactions, biometrics, or other personal activities.

Section 2.

No governmental authority or private entity shall use predictive systems to impose penalties, restrictions, classifications, or adverse determinations based solely upon anticipated future conduct.

Section 3.

Predictive models may inform decision-making but shall not replace individualized evidence, due process, or human review in consequential matters.

Section 4.

No person shall be subjected to adverse governmental action solely because an algorithm predicts future risk, association, intent, or behavior.

Article V

Right to Cognitive Privacy

Section 1.

Individuals possess the right to freedom of thought, belief, intellectual exploration, and mental autonomy.

Section 2.

No entity shall collect, infer, or exploit intimate psychological characteristics, emotional vulnerabilities, political beliefs, religious convictions, or cognitive patterns without lawful authorization and meaningful consent.

Section 3.

Technologies designed primarily to manipulate, coerce, or exploit known psychological vulnerabilities shall be subject to heightened regulatory scrutiny.

Article VI

Digital Due Process

Section 1.

Any individual affected by a consequential automated decision shall receive notice that automation was used.

Section 2.

Individuals shall have the right to a meaningful explanation of factors materially contributing to consequential automated decisions.

Section 3.

Individuals shall have the right to appeal and obtain human review of consequential automated decisions.

Section 4.

Government agencies shall not rely exclusively upon automated systems when exercising powers affecting constitutional rights.

Article VII

Digital Search and Surveillance Protections

Section 1.

The aggregation of digital information shall be considered when evaluating reasonable expectations of privacy.

Section 2.

Persistent, comprehensive, or long-term collection of personal digital activity by governmental authorities shall require legal authorization consistent with constitutional protections.

Section 3.

The collection of large-scale behavioral, locational, biometric, or communications data shall be subject to particularized legal standards proportional to the intrusiveness of the surveillance.

Section 4.

Technological capability alone shall not diminish constitutional protections.

Article VIII

Right to Digital Association and Expression

Section 1.

Individuals retain the rights of free expression, peaceful association, and anonymous participation in lawful discourse within digital environments.

Section 2.

Government shall not compel disclosure of lawful anonymous speech absent compelling legal justification and due process.

Section 3.

Digital participation shall not be conditioned upon unnecessary collection of personal information.

Article IX

Right to Data Security

Section 1.

Entities entrusted with personal information shall exercise reasonable safeguards to protect such information.

Section 2.

Individuals shall be notified within a reasonable period following discovery of material breaches affecting personal information.

Section 3.

Failure to implement reasonable safeguards resulting in foreseeable harm may give rise to civil liability.

Article X

Human Primacy Principle

Section 1.

Technology shall remain subordinate to constitutional government and individual liberty.

Section 2.

No automated system shall possess authority greater than that constitutionally delegated to a human decision-maker.

Section 3.

The rights secured herein belong to human persons and shall not be diminished by advances in artificial intelligence, predictive analytics, automation, or future technological systems.

Congressional Findings

Congress finds that:

1. Liberty requires meaningful personal autonomy.
2. Personal information increasingly functions as an extension of individual identity.
3. Predictive technologies create new concentrations of power capable of influencing behavior, opportunity, and civic participation.
4. Constitutional principles remain applicable regardless of technological medium.
5. The preservation of democratic self-government requires limits on both governmental and private concentrations of informational power.
6. Human dignity, autonomy, and due process remain foundational principles of the American constitutional order.